

Fire Service (Installations and Equipment) Regulations

(Cap. 95 sub. leg. B)

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Fire Service (Installations and Equipment) Regulations

(Cap. 95, section 25)

[1 June 1972] *L.N. 56 of 1972*
(*Format changes—E.R. 4 of 2019*)

1. Citation

These regulations may be cited as the Fire Service (Installations and Equipment) Regulations.

2. Interpretation

In these regulations, unless the context otherwise requires—

equipment list (設備清單) means the list kept under regulation 4;

portable equipment (手提設備) means any fire service equipment which is manufactured, used or designed to be used as an independent unit for the purpose of extinguishing, attacking, preventing or limiting a fire;

registered contractor (註冊承辦商) means a fire service installation contractor registered under the Fire Service (Installation Contractors) Regulations (Cap. 95 sub. leg. A); (*L.N. 269 of 1978; E.R. 4 of 2019; L.N. 73 of 2021*)

stand-alone fire detector (獨立火警偵測器) means a self-contained battery-operated installation that is manufactured, used or designed to be used for the purpose (whether or not the sole purpose) of detecting, and giving warning (by an audible alarm or otherwise) of, fire. (*L.N. 73 of 2021*)

3. Approval of portable equipment

- (1) The Director may from time to time approve for sale or supply any type of portable equipment.
- (2) Any person aggrieved by any decision of the Director under paragraph (1) may, within 14 days after the date when such decision has come to that person's notice, appeal by way of petition to the Chief Executive who may confirm, vary or reverse the decision.
- (3) The decision of the Chief Executive on the appeal shall be final.

(76 of 1999 s. 3)

4. List to be kept of approved portable equipment

- (1) The Director shall cause a list to be kept of portable equipment approved by him under regulation 3.
- (2) A list of portable equipment approved by the Director—
 - (a) is to be published in the Gazette at least once in every year; and
 - (b) is to be published from time to time, and in a way, as the Director considers appropriate. *(L.N. 100 of 2023)*

5. Prohibition on sale or supply of certain portable equipment

A person must not sell or supply any portable equipment that—

- (a) is not included in the equipment list; or
- (b) is included in the equipment list on which words are marked to signify that the approval given by the Director under regulation 3 for the equipment has expired.

(L.N. 100 of 2023)

6. Installation of fire service installation or equipment

(1 of 2017 s. 6)

- (1) No fire service installation or equipment shall be installed in any premises by any person other than a registered contractor. *(L.N. 73 of 2021)*
- (2) Paragraph (1) does not apply to any portable equipment or stand-alone fire detector that is not required by or pursuant to law to be installed in any premises. *(L.N. 73 of 2021)*

7. Maintenance, inspection or repair of fire service installation or equipment

(1 of 2017 s. 7)

- (1) No person other than a registered contractor shall maintain, inspect or repair any fire service installation or equipment which is installed in any premises. *(L.N. 269 of 1978; L.N. 73 of 2021)*
- (2) Paragraph (1) does not apply to any portable equipment or stand-alone fire detector that is not required by or pursuant to law to be installed in any premises. *(L.N. 73 of 2021)*
- (3) A registered fire engineer (fire service installation) may inspect and test any fire service installation or equipment installed in, or for, any premises prescribed by regulations made under section 25 of the Ordinance. *(1 of 2017 s. 7)*
- (4) The Director or a person authorized by the Director in writing may inspect and test any fire service installation or equipment installed in, or for, any premises. *(1 of 2017 s. 7)*

8. Duty of owners of fire service installation or equipment

(1 of 2017 s. 8)

- (1) The owner of any fire service installation or equipment which is installed in any premises shall— *(L.N. 73 of 2021)*
 - (a) keep such fire service installation or equipment in efficient working order at all times; and

- (b) have such fire service installation or equipment inspected by a registered contractor at least once in every 12 months.
- (2) Paragraph (1) does not apply to any stand-alone fire detector that is not required by or pursuant to law to be installed in any premises. (*L.N. 73 of 2021*)
- (3) Paragraph (1) does not apply to any listed portable equipment that—
 - (a) is installed in any domestic premises; and
 - (b) is not required by or pursuant to law to be installed in such premises. (*L.N. 100 of 2023*)
- (4) In this regulation—

domestic premises (住用處所)—

- (a) means any premises intended to be used solely or principally for residential purposes and constructed as a separate unit; but
- (b) does not include—
 - (i) a child care centre, or a mutual help child care centre, as defined by section 2(1) of the Child Care Services Ordinance (Cap. 243);
 - (ii) a hotel or guesthouse within the meaning of section 2A of the Hotel and Guesthouse Accommodation Ordinance (Cap. 349);
 - (iii) a bedspace apartment as defined by section 2 of the Bedspace Apartments Ordinance (Cap. 447);
 - (iv) a residential care home as defined by section 2 of the Residential Care Homes (Elderly Persons) Ordinance (Cap. 459);
 - (v) a treatment centre as defined by section 2 of the Drug Dependent Persons Treatment and

Rehabilitation Centres (Licensing) Ordinance (Cap. 566);

(vi) a residential care home for PWDs as defined by section 2 of the Residential Care Homes (Persons with Disabilities) Ordinance (Cap. 613); or

(vii) any specified premises;

listed portable equipment (表列手提設備) means any portable equipment that is included in the equipment list. (*L.N. 100 of 2023*)

(5) For the purposes of the definition of ***domestic premises*** in paragraph (4), premises are specified premises if—

(a) the premises are used for an operation that provides accommodation to any person; and

(b) the operation is regulated through a licensing or registration regime established by an Ordinance. (*L.N. 100 of 2023*)

9. Issue of certificates by registered contractors

(1) Whenever a registered contractor installs, maintains, repairs or inspects any fire service installation or equipment in any premises, he shall within 14 days after completion of the work issue to the person on whose instructions the work was undertaken a certificate and forward a copy thereof to the Director.

(2) A certificate issued under paragraph (1) shall state—

(a) the address of the premises in which the work was carried out;

(b) a description of the fire service installation or equipment concerned;

(ba) the date of the completion of the work; (*L.N. 269 of 1978*)

- (c) the nature of the work carried out; and
 - (d) whether or not the fire service installation or equipment is in efficient working order.
- (2A) A certificate issued under paragraph (1) shall be signed by the person authorized to do so under regulation 3A of the Fire Service (Installation Contractors) Regulations (Cap. 95 sub. leg. A) and any person who signs a certificate which is false or misleading in any material particular commits an offence and is liable on conviction to a fine at level 5. (*L.N. 269 of 1978; L.N. 191 of 1981; 7 of 2003 s. 19*)
- (3) Any registered contractor who—
- (a) contravenes paragraph (1); or
 - (b) issues or forwards a certificate thereunder, or a copy thereof, which is false or misleading in a material particular,
- commits an offence and is liable on conviction to a fine at level 5: (*7 of 2003 s. 19*)

Provided that where the certificate was signed by a person other than the registered contractor, the registered contractor shall not be convicted of an offence under subparagraph (b) if he proves that he exercised all due diligence to prevent the commission of the offence. (*L.N. 269 of 1978; L.N. 191 of 1981*)

10. Standard of inspection

- (1) The Director may, by notice in the Gazette, prescribe a Code of Practice which shall govern the inspection and testing of fire service installation or equipment. (*1 of 2017 s. 9*)
- (2) Any fire service installation or equipment shall be deemed to be in efficient working order if it complies with the

requirements specified by the Director in the Code of Practice prescribed under paragraph (1).

- (3) The Code of Practice prescribed under paragraph (1) shall—
- (a) be published in the Gazette at least once in every year; and
 - (b) be made available for inspection by any person at all reasonable times free of charge at the offices of the Fire Services Department and at each fire station in Hong Kong.

11. Delegation of powers

The Director may authorize the Deputy Director or a Chief Fire Officer to exercise any of the powers or duties conferred or imposed on him by these regulations.

12. Penalty

Any person who contravenes any of the provisions of regulation 5, 6, 7 or 8 shall be guilty of an offence and shall be liable on conviction to a fine at level 5.

(L.N. 191 of 1981; 7 of 2003 s. 20)